

Insight Eyecare and Optical, LLC

Employee Manual

EMPLOYEE MANUAL

Insight Eyecare and Optical, LLC

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2 Welcome

Welcome to the Insight Eyecare and Optical (hereinafter referred to as the "Company"). We hope that you enjoy your position with us and that it will remain beneficial to both you and the Company. We offer our best wishes for your future success and hope you will remain as proud to be a member of our practice as we are to have you.

3 Company Policy

Our mission is to offer the highest quality eye care and eye wear to patients. The patient experience is our foremost concern. Whether asking a patient how their daughter's graduation was, or simply remembering their name, we strive to provide an unmatched personal experience to every patient. St Cloud makes up an intimate community where referrals and word-of-mouth go a long way. It is essential that we convey genuine care for each patient and make them feel at home in our office.

General Standards

- Maintain professionalism at all times
- Treat patients like family, "go the extra mile"
- All patients needs must be met and never left unattended
- Keep a positive attitude at all times
- Minimize waiting time in the reception area
- Maintain confidentiality and abide by HIPPA regulations at all times
- Assist in maintaining a clean office
- Cross train and assist all colleagues in their day-to-day tasks
- Punctuality and meeting deadlines consistently
- Always display a willingness to do more than expected

Effective: 01 April 2023

4 Purpose of This Manual

This Manual is for the information and use of all employees of the Company. It contains the policies of the Company relating to hours, wages, employee benefits and conditions of employment, and provides a reference manual that should be followed by the Company and its employees. Company policies are operating practices and procedures of the Company. These policies have been established for the benefit of the employees and management in order to provide the best working conditions possible.

THE LANGUAGE OF THIS MANUAL AND THE RULES AND POLICIES STATED WITHIN ARE NOT INTENDED TO CREATE, NOR DO THEY CONSTITUTE, A Insight

CONTRACT IMPLIED OR EXPRESS BETWEEN THE COMPANY AND ANY OF ITS EMPLOYEES. THE POLICIES AND PROCEDURES ARE NOT UNCHANGEABLE. IF CIRCUMSTANCES ARISE THAT WARRANT CONSIDERATION OF A CHANGE IN POLICIES OR PROCEDURES, EMPLOYEES SHOULD BRING SUCH CIRCUMSTANCES TO THE ATTENTION OF MANAGEMENT. THIS MANUAL AND THE RULES AND POLICIES CONTAINED IN IT ARE SUBJECT TO CHANGE AT ANY TIME WITHIN THE SOLE DISCRETION OF MANAGEMENT.

EMPLOYMENT AT THE COMPANY IS ON AN "AT WILL" BASIS AND MAY BE TERMINATED BY THE COMPANY OR THE EMPLOYEE AT ANY TIME FOR ANY REASON. ANY CHANGE TO THIS AT WILL EMPLOYMENT STATUS, INCLUDING EMPLOYMENT FOR A PARTICULAR REASON, MAY BE GRANTED ONLY WITH THE SPECIFIC PRIOR WRITTEN APPROVAL OF THE PRESIDENT OF THE COMPANY.

5 Company Policies

5.1.1 Internet Policy

Purpose.

The purpose of this policy is to ensure the proper use of the Company's internet system and make its employees and users aware of what the Company deems as acceptable and unacceptable use of its internet system. This policy also provides for sanctions in the event of a breach or violation of the policy terms hereunder.

Applicability.

This Policy applies to all users of company technology, including employees, contractors, vendors, partners, associates, and any other parties accessing or using the Company's System through on-site or remote terminals.

Disclaimer of liability for use of Internet.

The Company is not responsible for material viewed or downloaded by users from the Internet. The Internet is a worldwide network of computers that contains millions of pages of information. Users are cautioned that many of these pages include offensive, sexually explicit, and inappropriate material. In general, it is difficult to avoid at least some contact with this material while using the Internet. Even innocuous search requests may lead to sites with highly offensive content. In addition, having an email address on the Internet may lead to receipt of unsolicited e-mail containing offensive content. Users accessing the Internet do so at their own risk.

Duty not to waste computer resources.

Employees must not deliberately perform acts that waste computer resources or unfairly monopolize resources to the exclusion of others. These acts include, but are not limited to, sending mass mailings or chain letters, spending excessive amounts of time on the Internet, playing games, engaging in online chat groups, wasting toner by printing multiple copies of documents, or otherwise creating unnecessary network traffic. Because audio, video and picture files require significant storage space, files of this or any other sort may not be downloaded unless they are business-related.

No expectation of privacy.

The computers and computer accounts given to employees are the exclusive property of the Company. No individual should have any expectation of privacy in any communication over this System. The System is to be used solely for company-related business, and is not to be used for personal business or pleasure.

Monitoring computer usage.

The Company reserves the right to monitor, intercept and/or review all data transmitted, received or downloaded over the System. Any individual who is given access to the System is hereby given notice that the Company will exercise this right periodically, without prior notice and without the prior consent of the employee. The Company's interests in monitoring and intercepting data include, but are not limited to: protection of company proprietary and classified data; managing the use of the Company's computer System; preventing the transmission or receipt of inappropriate materials by employees; and/or assisting the employee in the management of electronic data during periods of absence. No individual should interpret the use of password protection as creating a right or expectation of privacy. In order to protect everyone involved, no one can have a right or expectation of privacy with regards to the receipt, transmission or storage of data on the Company's Internet System. The Company's computer systems are not to be used for personal use nor should any personal information be stored or downloaded on the company computer system.

Blocking of inappropriate content.

The Company may use software to identify inappropriate or sexually explicit Internet sites. Such sites may be blocked from access by Company networks. In the event you nonetheless encounter inappropriate or sexually explicit material while browsing on the Internet, immediately disconnect from the site, regardless of whether the site was subject to company blocking software.

Prohibited activities.

Material that is fraudulent, harassing, embarrassing, sexually explicit, profane, obscene, intimidating, defamatory, or otherwise unlawful, inappropriate, offensive (including offensive material concerning sex, race, color, national origin, religion, age, disability, or other characteristic protected by law), may not be downloaded from the Internet or displayed or stored in Company's computers. Employees encountering, witnessing or receiving this kind of material should immediately report the incident to the Dr. Carl Ritch, OD, by phone at 904.769.9266 or email at RitchOD@insightforeyecare.com or to the Practice Manager, Monica Weston, by phone at 858.568.0392 or email at Monica@WindermereBookkeeping.com.

Games and entertainment software.

Employees may not use the Company's Internet connection to download games or other entertainment software, including wallpaper and screensavers, or to play games over the Internet.

Illegal copying.

Employees may not illegally copy material protected under copyright law or make that material available to others for copying. You are responsible for complying with copyright law and applicable licenses that may apply to software, files, graphics, documents, messages, and other material you wish to download or copy. You may not agree to a license or download any material for which a registration fee is charged without first obtaining the express written permission of your Practice Manager.

Accessing the Internet.

To ensure security and to avoid the spread of viruses, employees accessing the Internet through a computer attached to Company's network must do so through an approved Internet firewall. Accessing the Internet directly by modem is strictly prohibited unless the computer you are using is not connected to the Company's network.

Virus detection.

Files obtained from sources outside the Company, including disks brought from home; files downloaded from the Internet, newsgroups, bulletin boards, or other online services; files attached to email; and files provided by customers or vendors may contain dangerous computer viruses that may damage the Company's computer network. Employees should never download files from the Internet, accept email attachments from outsiders, or use disks from non-company sources, without first scanning the material with company-approved virus checking software. If you suspect that a virus has been introduced into the Company's network, notify management immediately.

Sending unsolicited e-mail (spamming).

Without the express permission of their supervisors, employees may not send unsolicited e-mail to persons with whom they do not have a prior relationship.

Violations of this policy.

Any employee who abuses the privilege of access to the Company's Voicemail, E-mail or the Internet System will be subject to corrective action, up to and including termination. If necessary, the Company also will advise law enforcement officials of any illegal conduct.

Use of the Internet.

Use of the Internet via Company's computer system constitutes consent by the user to all of the terms and conditions of this policy.

5.1.2 Email Policy**Purpose.**

The purpose of this policy is to ensure the proper use of the Company's email system and make the users (defined below) aware of what the Company deems as acceptable and unacceptable use of its email system. This policy also provides for sanctions in cases of breach of violation of the policy terms.

Email Accounts are the Property of the Company.

All email accounts maintained on the Company's email systems are property of the Company. The Company has the right to read and keep a record of any emails that users transmit via the Company's email system.

Email exists for Business Purposes only.

The Company allows its e-mail access primarily for business purposes. The users may use the Company's email system for personal use only in accordance with this policy.

Authorized Personal Email Use.

The Company's email system is meant only for business use, the Company does not allow the use of email for personal use. No employee should use their personal email account on company computers nor should their personal email be saved on company computer systems.

Unacceptable use of Email.

The following acts shall constitute unacceptable use of the email system of the Company:

- i. Use of the Company's communications systems for a personal business or send chain letters;
- ii. Forwarding of the Company's confidential messages to external locations;
- iii. Distributing, disseminating or storing images, text or materials that might be considered indecent, pornographic, obscene or illegal;
- iv. Distributing, disseminating or storing images, text or materials that might be considered discriminatory, offensive or abusive, in that the context is a personal attack, sexist or racist, or might be considered as harassment;
- v. Accessing copyrighted information in a way that violates the copyright;
- vi. Breaking into the Company's or another organizations system or unauthorized use of a password/mailbox;
- vii. Broadcasting unsolicited personal views on social, political, religious or other non-business related matters;
- viii. Using e-mail to operate another business, conduct an external job search, or solicit money for personal gain;
- ix. Transmitting unsolicited commercial or advertising material;
- x. Undertaking deliberate activities that waste staff effort or networked resources; and
- xi. Introducing any form of computer virus or mal-ware into the corporate network;

Legal Risks Involved.

Email is a business communication tool and the users are obliged to use this tool in a responsible, effective, and lawful manner. Although by its nature email seems to be less formal than other written communication, similar laws apply. Therefore, it is important that users are aware of the following legal risks of e-mail. Both the user and the Company can be held liable for:

- i. sending emails with any libelous, defamatory, offensive, racist or obscene remarks;
- ii. forwarding emails with any libelous, defamatory, offensive, racist or obscene remarks;
- iii. unlawfully forwarding confidential information of others;
- iv. copyright infringement for unlawfully forwarding or copying messages without permission; and
- v. sending an attachment that contains a virus.

The above list does not enumerate all the legal risks involved. However, by following the guidelines provided in this policy, the users can minimize the legal risks involved in the use of e mail. If any user disregards the rules set out in this Email Policy, the Company can take corrective action up to and including termination of employment.

Maintenance.

i. Email passwords should not be given to other people and should be changed periodically; **ii.** Email accounts not used for a long period will be deactivated and possibly deleted; **iii.** Delete any email messages that you do not need to have a copy of, and set your email client to automatically empty your deleted items on closing;

Business Record Retention Policy.

E-mail messages are written business records and are subject to the Company's rules and policies relating to retaining and deleting business records.

Confidential Information.

Avoid sending confidential information by email. Unless authorized to do so, the users are prohibited from using email to transmit confidential information to outside parties. Users may not access, send, receive, solicit, print, copy, or reply to confidential or proprietary information about the Company, its employees, clients, and other business associates.

Confidential information includes, but is not limited to:

- i. client lists;
- ii. credit card numbers;
- iii. Social Security numbers;
- iv. employee performance reviews;
- v. salary details;
- vi. trade secrets;
- vii. passwords; and
- viii. any other information that could embarrass the Company and its associates if the information were disclosed to the public

System Monitoring.

E-mail messages created and transmitted via the Company's email system are the property of the Company. The Company reserves the right to monitor all email transmitted via the Company's email system. Employees have no reasonable expectation of privacy when it comes to business and personal use of the Company's email system.

Violations and Sanctions.

If an employee is found to violate any of these email policy rules, the Company could take disciplinary action up to and including termination of employment.

5.2 Personal Device Policy

All employee portable or handheld devices must be turned off or on silent and stowed away from patient view. No Bluetooth headsets or ear plugs allowed while working. Unless there is an emergency that your supervisor is aware of, cell phones are to be used during lunch breaks only.

All communication with vendors and patients must be made via the office telephone, office email, or via text through SolutionReach. NO EXCEPTIONS.

5.3 How Your Job Is Classified

Regular full-time employees are eligible for Company benefits after their 90-day probationary period (see section 6) subject to the terms and conditions of each employee's respective employment contract. Management has sole discretion on whether or not to give an employee any benefit privileges during their 90-day probationary period.

Regular part-time employees are not eligible for Company benefits except as expressly described herein.

Temporary employees are hired for a limited period of time and/or for a specific project. These employees may be scheduled to work full or part-time, and are not eligible for any benefits except those required by law.

Each employee will be advised of his or her status at the time of hire and any change in status thereafter. Regardless of the employee's status, the employee is employed at-will and the employment relationship can be terminated by the Company or the employee at any time, with or without cause.

5.4 Hours and Payroll Practices

The Company's paydays are bi-weekly on Tuesday of every other week unless otherwise stated. All employees are paid by automatic bank deposit.

Each regular full-time, part-time, temporary, or non-salaried employee will have access to ADP. You are responsible for clocking in and clocking out as well as clocking in and out for your lunch time. Failure to do so, may delay payment. Falsifying time records is a form of theft and results in disciplinary action up to and including termination.

Only time worked should be reported. All other time should be recorded as vacation/sick/holiday pay.

5.5 Smoking Policy

The Company maintains a tobacco and smoke free office. No smoking or other use of tobacco products (including, but not limited to, cigarettes, e-cigarettes or vaping devices, pipes, cigars, snuff, or chewing tobacco) is permitted in any part of the building.

5.6 Office Cleaning

Each department is responsible for keeping their respective areas clean at all times. Optical is responsible for maintaining the optical showroom clean. The front desk is responsible for keeping the hallway and front desk area clean, The techs are responsible for keeping the exam

rooms clean. This includes but is not limited to the floors, tables, etc. The bathrooms and breakroom will be cleaned weekly by rotation. A different person will be assigned each week.

6 Benefits Offered to Full-time Employees

6.1 Workers' Compensation Insurance

Should you become injured on the job, the Company carries workers' compensation insurance.

The policy requires that all injuries be reported immediately, in person to your supervisor in order that proper medical attention can be obtained from you and reports made to the proper governmental authorities. For injuries requiring medical attention, your supervisor or management will assist you in making any additional arrangements.

6.2 Social Security Benefits

The Company is a vital partner in the matter of the employee's Social Security benefits. The Social Security funds, made up of the FICA (Federal Insurance Contributions Act) tax deducted from each employee's paycheck and the matching Company amount are on deposit with the Treasurer of the U.S.

6.3 Lunch Periods

Employees scheduled to work more than five hours in a workday are provided with one 30-minute unpaid meal period. Employees who do not use the entire 30-minute lunch period and choose to continue working during part or all of this period will not be paid. Meal periods should be scheduled to accommodate operating requirements and customer needs. During busy times, the doctor may ask you to cut a lunch period short in which case you will be paid for the foregone lunch time.

6.4 Holidays

Regularly scheduled paid holidays are granted to all full-time employees each year, after a number of days of continuous employment detailed in your employment offer. Paid holidays include:

- New Years Day
- Memorial Day
- Fourth of July
- Labor Day
- Thanksgiving Day
- Christmas Day

6.5 Vacations, Sick Days, and Personal Days

6.5.1 Vacation

Full time salaried employees are eligible to receive vacation benefits of 1 week the first year of employment after their 90 day probationary period to be accrued. Employees are eligible for 2 weeks of vacation after their first year of employment to also be accrued.

Employees must notify the doctor and practice manager a minimum of 30 business days in advance of requesting vacation time, unless special circumstances are recognized. It is appreciated, however, to request vacation time as early as possible. All vacation requests must be approved by the doctor and practice manager prior to using. Generally, our busiest months, December and January, are not months that the company would prefer for employees to take vacation.

Unused vacation days become null and void as of December 31st of the current year and carry no monetary value thereafter. If at any time during the year, an employee discontinues employment, whether by will or termination, there will be no pro rata payment to employee for unused vacation days.

6.5.2 Personal and Sick Days

Sick days are intended to be used for health conditions that prevent the employee from working or risk patient and staff welfare. Personal days are intended to be used for unexpected circumstances that require the employee to take time off and may not be scheduled in advance. Personal/Sick days are not intended to be used in conjunction with or as continuous vacation time. Please use proper discretion when using personal/sick days.

6.6 401k Retirement Plan

The Company provides a 401k Retirement Plan (The Plan) to help employees accumulate financial resources for retirement.

To be eligible to join the 401(k) Plan, an employee must complete 12 months of service and be 21 years of age or older.

Subject to statutory limits on tax deductibility, the Plan allows employees to elect how much of their salary they want to contribute to the Plan and to direct the investment of their funds into professionally managed investment funds. An employee is fully vested in his or her own contributions and entitled to those contributions upon termination of employment regardless of the length of employment. The company may, but is not required under the Plan, to make a matching contribution to employees' contributions at plan year-end. At the end of five years of employment, an employee is fully vested in the company's matching contributions.

Employees who terminate employment and are not rehired within 30 days will lose their credited service, except as relates to qualified benefits plans in which the employee was vested.

6.7 Other Benefits

- **Work Clothing Provision:** certain employees may receive work attire reimbursements or be issued company uniforms. This reimbursement varies by position and will be outlined at the time of hiring and throughout employment by the practice manager.
- **Medical Services:** Free eye exams for you and your immediate family (spouse and children) up to a maximum total of 6 family members per year. Appointments with the doctor are preferred to be made when the doctor's schedule is open or outside company operating hours if possible. Eye exams for your family remain at the discretion of the Doctor based on availability.
- **Discounted Products:** Discounted eyewear and contact lenses for you and your immediate family (spouse and children) up to a maximum total of 6 family members per year. Discounts will generally be equivalent to the total cost incurred by the company plus \$50 to provide you or your family the products. After the employee's 90-day probationary period, he/she is eligible for one free pair of eyeglasses or contact lenses per year.

7 What the Company Expects Of You

7.1 Employee Performance Reviews

All new employees are under a 90-day probationary period. Performance reviews will be given at 90-days. All employees will have an annual performance review, however, management reserves the right to conduct a performance review at any given time..

7.2 Changes of Address

When you change your address or telephone number, you should notify management of the change immediately, in order that the Company will always have the correct home address and telephone number by which your home can be reached.

7.3 Absence

Regular attendance is necessary in order to meet customer needs. Written permission from a physician must be obtained before returning to work if you have been absent 14 days or more due to illness. If you fail to call in for a period of 2 days, you may be considered to have voluntarily resigned. Repeated instances of one day absences from work will be grounds for discipline up to and including discharge.

7.4 Severe Weather Conditions and Other Emergencies

If the Company remains open during adverse weather conditions and you do not report to work

or choose to leave early, you will not be paid for the time off. Employees may elect to use vacation or personal days allowance to be paid on such days. If the Company is officially closed due to adverse weather conditions, employees will not be paid for the time off. Employees may choose to use vacation or personal days allowance to be paid on such days.

7.5 Dress Standards

What we wear to work is a reflection of the pride we have in our Company, in what we do and in ourselves. Although dress code requirements will vary according to job responsibilities, we ask that your appearance at all times show discretion, good taste, and not present a hazard in the performance of your job. Clothing worn should be cleaned and pressed at minimum. Shoes should be closed-toe.

7.6 Solicitation

Persons not employed by the Company may not, at any time, solicit or distribute literature or other printed materials on Company property for any purpose unless approved by a manager. Employees may not solicit during working time in work areas or distribute literature or other printed material during working time or in working areas unless approved by a manager.

7.7 Personal Telephone Calls

Employees are allowed phone calls in emergencies and special circumstances. Otherwise, employees should limit personal telephone calls to their lunch break. It is the responsibility of each employee to notify family, friends and others who might call, to keep it to a minimum.

7.8 Security

The Company is committed to providing the organization with the most thorough and comprehensive security program possible. The program is intended to provide legitimate and reasonable guidelines for safeguarding our facilities and proprietary information. Every employee has an obligation to protect our Company's proprietary data and to practice good security common sense.

7.9 Gratuities/Gifts

Employees may not accept gifts from business-related sources.

7.10 Discharge, Discipline and Work Rules

For the protection of all employees, and in order to operate efficiently, certain rules are necessary. The following is a partial list of the kinds of improper conduct which shall constitute grounds for disciplinary action, up to and including immediate discharge:

- i. Reporting to work under the influence of alcohol or drugs.
- ii. Bringing, possessing, or acquiring alcohol or drugs .
- iii. Selling or attempting to sell alcohol or drugs to other employees.
- iv. Theft of Company property, Company time, or fellow worker's personal belongings.

Additionally, any employee may be discharged in the event of continued violation of work rules. Improper conduct may constitute grounds for the issuance of a warning before more severe disciplinary action is taken.

8 HIPAA Compliance

You must remain fully HIPAA compliant at all times. As a medical professional you are expected to remain up to date on any and all HIPAA regulations. Please refer to www.HHS.gov and contact the US Department of Health & Human Services for any questions regarding HIPAA compliance.

9 Conclusion

This Manual has outlined the broad principles that guide our Company in its relations with employees. It is our hope that you will find Insight Eyecare and Optical to be a safe and secure work environment with great opportunities for advancement in your career. We are committed to you as an employee just as much as you are committed to your job. Your feelings and concerns are always appreciated and remain a priority of the Company. We welcome any comments you have regarding your employment as well as suggestions for how the Company might improve.

All of us at Insight Eyecare and Optical look forward to developing a long and mutually beneficial working relationship with you.

If you have any questions regarding the material in this manual, please don't hesitate to contact your managers:

Carl Ritch, OD
Monica Weston

Statement of Understanding

I have received, read, and agree to abide by the Insight Eyecare and Optical Employee Manual. I understand the policies and procedures set forth in this Manual. I also understand that this Manual is not a contract of employment, does not in any way limit the right of the Company to terminate my employment and that my employment may be terminated at any time, with or without notice, within the sole discretion of the Company management.

Employee's Written Name

Employee's Signature

Date